



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

07/23/2026

2:02 PM

Page 1

Hearing Date: 08/04/2026 - 09:00 AM

Judge: Hill, Elizabeth M.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SAN MATEO

Probate

Department 12

Courtroom 2D

Hon. Elizabeth M. Hill

August 4, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 809 3162 PASSWORD: 355238	Phone number: 1 (669) 254-5252 Meeting ID: 161 809 3162 PASSWORD: 355238

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept12@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



SUPERIOR COURT OF SAN MATEO COUNTY

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Page 2

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18-PRO-00361	Conservatorship of RUSTOM MAGAT	
Line 1	Proposed Conservatee: MAGAT, RUSTOM (MARIN COUNTY PUBLIC DEFENDER) Petitioner: TAN, NAIDA PEEJAY M. (Pro Se) Proposed Conservator: CAPUZ, JESUS M., III Proposed Conservator: MAGAT, RAYMOND T. Proposed Conservator: TAN, NAIDA PEEJAY M. (Pro Se) Conservatee: MAGAT, RUSTOM (MARIN COUNTY PUBLIC DEFENDER) Conservator: CAPUZ, JESUS M., III Conservator: MAGAT, RAYMOND T. Conservator: TAN, NAIDA PEEJAY M. (Pro Se) Brother: MAGAT, RAYMOND T. Father: MAGAT, RODOLFO G. Mother: TAN, NAIDA PEEJAY M. (Pro Se) Stepparent: CAPUZ, JESUS M., III	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. Pursuant to Probate Code §1851.5, the court orders payment of \$850.00 for the current assessment from the trust to the Superior Court of California, County of San Mateo, within fifteen (15) days.		
21-PRO-01034	Estate of PAUL LAWRENCE BISHOP	First and Final Report and Account of Executor and Petition For Its Settlement, For Allowance of Statutory Compensation to Counsel for Executor, for Costs and for Final Distribution
Line 2	Petitioner: Bair, Ellen (TUNG, INGRID K.) Decedent: BISHOP, PAUL LAWRENCE Interested Party: STATE OF CALIFORNIA Personal Representative: Bair, Ellen Proposed Personal Representative: Bair, Ellen	Petition for Final Distribution



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

07/23/2026

2:02 PM

Page 3

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Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution is GRANTED absent cogent objection. Formal order required.

25-PRO-01424	IN RE THE MATTER OF SURVIVOR'S TRUST CREATED UNDER THE JAMES FAMILY TRUST, DATED SEPTEMBER 13, 1973	PETITION FOR ORDER APPROVING AND SETTLING TRUSTEE'S SECOND ACCOUNT AND REPORT - Continued on 03/11/2026 Petition for Order Approving and Settling Trustee's Third Account and Report - Moved from 08/05/2026
Line 3, 4	Petitioner: Berkman, Norman M. (VON HERRMANN, SUSAN ALLEC, ANA M.) Decedent: JAMES, BEVERLY B Decedent: JAMES, GEORGE B Objector: James, Christopher (HATELEY, KATHLEEN M) Other: James, Phoebe	Petition Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 3-11]

Both Petitions are CONTINUED to January 8, 2026 at 9:00 am for status. Parties are ordered to file status reports ten (10) days before the next hearing.



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

07/23/2026

2:02 PM

Page 4

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25-PRO-01432	IN RE THE MATTER OF: MARITAL TRUST CREATED UNDER THE JAMES FAMILY TRUST, DATED SEPTEMBER 13, 1973	PETITION FOR ORDER APPROVING AND SETTLING TRUSTEE'S SECOND ACCOUNT AND REPORT - Continued on 03/11/2026 Petition for Order Approving and Settling Trustee's Third Account and Report - Moved from 08/05/2026
Line 5, 6	Petitioner: Berkman, Norman M. (VON HERRMANN, SUSAN ALLEC, ANA M.) Decedent: JAMES, BEVERLY B. Decedent: JAMES, GEORGE B. Objector: James, Christopher (HATELEY, KATHLEEN M) Other: James, Phoebe	Petition Hearing Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL [Related matters at lines 3-11] Both Petitions are CONTINUED to <u>January 8, 2026 at 9:00 am</u> for status.		

25-PRO-01433	IN RE THE MATTER OF: CREDIT SHELTER TRUST CREATED UNDER THE JAMES FAMILY TRUST, DATED SEPTEMBER 13, 1973	PETITION FOR ORDER APPROVING AND SETTLING TRUSTEE'S SECOND ACCOUNT AND REPORT - Continued on 03/12/2026 Petition for Order Approving and Settling Trustee's Third Account and Report - Set per 03/12/2026 minute order
Line 7, 8	Petitioner: Berkman, Norman M. (VON HERRMANN, SUSAN ALLEC, ANA M.) Decedent: JAMES, BEVERLY B. Decedent: JAMES, GEORGE B. Objector: James, Christopher (HATELEY, KATHLEEN M) Other: James, Phoebe	Petition Hearing Petition Hearing



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

07/23/2026

2:02 PM

Page 5

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Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 3-11]

Both Petitions are CONTINUED to January 8, 2026 at 9:00 am for status.

25-PRO-01434	IN RE THE MATTER OF: EXEMPT MARITAL TRUST CREATED UNDER THE JAMES FAMILY TRUST, DATED SEPTEMBER 13, 1973	PETITION FOR ORDER APPROVING AND SETTLING TRUSTEE'S SECOND ACCOUNT AND REPORT - Continued on 03/12/2026 Petition for Order Approving and Settling Trustee's Third Account and Report
Line 9, 10	Petitioner: Berkman, Norman M. (VON HERRMANN, SUSAN ALLEC, ANA M.) Decedent: JAMES, BEVERLY B. Decedent: JAMES, GEORGE B. Objector: James, Christopher (HATELEY, KATHLEEN M) Other: James, Phoebe	Petition Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 3-11]

Both Petitions are CONTINUED to January 8, 2026 at 9:00 am for status.



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

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2:02 PM

Page 6

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25-PRO-01452	IN THE MATTER OF THE JAMES FAMILY TRUST DATED SEPTEMBER 13, 1973, AS AMENDED AND RESTATED	Status RE: Possible Suspension, Final Distribution &/OR Evidentiary Hearing Setting
Line 11	Petitioner: James, Christopher (HATELEY, KATHLEEN M) Decedent: JAMES, BEVERLY B. Decedent: JAMES, GEORGE B. Respondent: Berkman, Norman M. (BAER, DAVID W. ALLEC, ANA M.) Respondent: James, Margaret Windsor (BARLOW, GARRETT) Respondent: James, Phoebe Presber (BARLOW, GARRETT) Respondent: James, William Dent (BARLOW, GARRETT) Other: James, Phoebe	Status Hearing
Tentative Ruling: APPEARANCE OPTIONAL [Related matters at lines 3-11] Petition is CONTINUED to <u>January 8, 2026 at 9:00 am</u> for status.		

26-PRO-00253	Guardianship of Alisson Abigail Garcia Ramirez	
Line 12, 13	Petitioner: Garcia Ramirez, Alisson Abigail (ALVAREZ, MICHELLE) Ward: Garcia Ramirez, Alisson Abigail Proposed Guardian: Garcia Zeledon, Alba Maricela Minor: Garcia Ramirez, Alisson Abigail	Petition for Special Immigrant Juvenile Findings Appointment of Guardian for Person of the Minor
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) Both petitions are GRANTED. The court intends to makes SIJ findings on the basis of abuse by father.		



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

07/23/2026

2:02 PM

Page 7

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26-PRO-00287	IN THE MATTER OF OF:THE KWOK KOU TAM AND ANNIE T.C .TAM REVOCABLE TRUST DATED DECEMBER 7, 1996, AND THE SURVIVOR'S AND BYPASS TRUSTS CREATED THEREUNDER, AS AMENDED	PETITION TO COMPEL ACCOUNTING FROM WANDA CHEN, CO-TRUSTEE; TO COMPEL REDRESS OF A BREACH OF THE TRUST AGAINST WANDA CHEN, CO-TRUSTEE; AND PETITION TO APPOINT CO-TRUSTEE OR INDEPENDENT TRUSTEE
Line 14	Petitioner: Tam, Kinson (FLEGEL, NICOLAS A.) Decedent: TAM, ANNIE T.C. Decedent: TAM, KWOK KOU	Petition Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Respondent Wanda Chen is ordered to file a petition to approve account, with an account that includes the period from the date of surviving settlor's death to the present, within sixty (60) days. If Respondent Wanda Chen fails to appear and object to the Petition, the Court intends to issue an order to show cause to Respondent Wanda Chen as to why the remainder of the Petition should not be granted. The Petition would be CONTINUED to December 22, 2026 at 9:00 am and the order to show cause would be set on December 22, 2026 at 9:00 am.

Hearings Total: 14